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Case Number: 25STCV22013 Hearing Date: September 23, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

JUDE HALAWI,

vs.

VVV GLOBAL

ENT., et al.

Case No.:

25STCV22013

Hearing Date: September 23, 2026

Defendants VVV

Global Ent., LLC d/b/a Miss USA and Miss Teen USA's, Laylah Loiczly's, and Elyse

Sevi's motion for judgment on the pleadings of Plaintiff Jude Halawi's

complaint is granted with 20 days leave to amend as to each cause of action.

Moving Defendants VVV Global Ent., LLC

d/b/a Miss USA and Miss Teen USA (“VVV Global”), Laylah Loiczly (“Loiczly”), and Elyse Sevi (“Sevi”) (collectively, “Pageant Defendants”) move for judgment on the pleadings of Plaintiff Jude Halawi’s (“Halawi”) (“Plaintiff”) complaint (“Complaint”), and each cause of action therein plead, on the basis it fails to state sufficient facts to constitute a cause of action against Pageant Defendants and the allegations and claims for relief fail to sufficiently allege liability against Pageant Defendants. (Notice Motion, pg. 2; C.C.P. §438.)

Background

Plaintiff filed his

operative Complaint on July 25, 2025, against Pageant Defendants and Non-moving Defendants M & C Hotel Interests, Inc., (d/b/a Millennium Biltmore Hotel Los Angeles) (“M&C Hotel Interests”), S&S Labor Force Inc, (d/b/a JRM Private Security) (“S&S Labor Force”), Matthew Lopez (“Lopez”), Renato Basile Entertainment, Inc. (“RB Entertainment”), Renato Basile (“Basile”), Jimmy Wu (“Wu”), Stuart Howe (“Howe”), and Brenda Canales (“Canales”) (collectively, “Non-moving Defendants”), alleging ten causes of action: (1) Violation of Civil Code §52.1 [against all Defendants]; (2) Violation of Civil Code §51.7 [against all Defendants]; (3) Violation of Civil Code §51.5 [against Defendants VVV Global, M&C Hotel Interests, RB Entertainment, and S&S Labor Force]; (4) Violation of Civil Code §51 [against all Defendants]; (5) Assault [against all Defendants]; (6) Battery [against all Defendants]; (7) False Arrest [against all Defendants]; (9) Negligence, including Negligent Hiring, Retention, Supervision and/or Training [against all Defendants]; and (10) Intentional Infliction of Emotional Distress [against all Defendants].

On June 2, 2026, Pageant Defendants filed the instant motion. On September 10, 2026, Plaintiff filed his opposition. On September 16, 2026, Pageant Defendants filed their reply.

Legal Standard

“A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself.” (Stoops v.

Abbassi (2002) 100 Cal.App.4th 644, 650; see also Korchemny v. Piterman (2021) 68 Cal.App.5th 1032, 1055 [“common law ground for a motion for judgment on the pleadings is identical to the statutory ground”].)

The grounds for a motion for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts the court may judicially notice. (C.C.P. §438(d); Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, 758-759.)

Where the motion is based on matters the court may judicially notice (under Evidence Code §§452, 453), such matters must be specified in the notice of motion or supporting points and authorities. (Compare C.C.P. §438(d) with Saltarelli & Steponovich v. Douglas (1995) 40 Cal.App.4th 1, 5 [taking judicial notice of matters in parties' exhibits in “nonstatutory” motion for judgment on the pleadings].)

Meet and Confer

Before filing a motion for judgment on the pleadings, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion. (C.C.P. §439(a), emphasis added.) A declaration must be filed with the motion regarding the results of the meet and confer process. (C.C.P. §439(a)(3).)

Pageant Defendants' counsel's declaration states that on January 23, 2026, he met and conferred with Plaintiff's counsel telephonically and the parties were unable to reach an agreement. (See Decl. of Wahl ¶13.) Pageant Defendants' counsel's declaration is proper pursuant to C.C.P. §439. Therefore, the Court will consider Pageant Defendants' motion.

Failure to State
a Claim

Entire Complaint
as Alleged Against Defendant Loiczly

Plaintiff alleges

Defendant Loiczly (also known as Laylah Rose) was at all relevant times the president and chief executive of Miss USA. (Complaint ¶8.) Plaintiff alleges on information and belief that Defendant Loiczly is a resident of Florida who was doing business in Los Angeles County. (Complaint ¶8.) Plaintiff alleges on information and belief that Defendant Loiczly was responsible for the direction, supervision and management of the Miss Teen USA Pageant, including pageant security personnel, and was directly responsible for causing the false arrest and use of non-consensual and excessive force against Plaintiff. (Complaint ¶8.)

Plaintiff alleges

on information and belief that each Defendant is, and at all times mentioned was, the agent, employee, representative, successor and/or assignee of each other Defendant. (Complaint ¶9.) Plaintiff alleges each Defendant, in doing the acts, or in omitting to act as alleged in this Complaint, was acting within the scope of his or her actual and apparent authority, or the alleged acts and omissions of each Defendant as agent subsequently were ratified and adopted by each other Defendant as principal.

(Complaint ¶9.) Plaintiff alleges

on information and belief that each individual Defendant was in some way responsible for the torts alleged in this complaint. (Complaint ¶9.)

Pageant

Defendants argue the entire Complaint is devoid of any factual allegations against Defendant Loiczly in her individual capacity, and therefore all claims against her should be dismissed. (Motion, pgs. 9-10.) Pageant Defendants' argument is well taken. While Plaintiff does allege that Defendant Loiczly was "the president and chief executive of [Defendant VVV Global]," Plaintiff fails to allege any facts pertaining to Defendant Loiczly.

With regard to

conduct alleged against Defendant Loiczly in her capacity as "the president and chief executive of Miss USA," Plaintiff also fails to allege facts stating the relationship she had with Defendant M&C Hotel Interests; Plaintiff does not allege VVV Global and M&C Hotel Interests are alter egos of each other. The mere allegation that each entity ratified the other's conduct is conclusory and fails for lack of factual allegations.

Accordingly,

Pageant Defendants' motion for judgment on the pleadings of Plaintiff's Complaint as alleged against Defendant Loiczly individually and in her capacity as the president and chief executive of Miss USA is granted with 20 days leave to amend.

Violation of Civil

Code §52.1 (Bane Act) (1st COA)

"[T]o state a cause of action under section 52.1 there must first be violence or intimidation by threat of violence. Second, the violence or threatened violence must be due to plaintiff's membership in one of the specified classifications set forth in Civil Code section 51.7 or a group similarly protected by constitution or statute from hate crimes." (Gabrielle A. v. County of Orange (2017) 10 Cal.App.5th 1268, 1290.)

Plaintiff alleges

that he is of Lebanese descent.

(Complaint, ¶1.) He alleges that

he was attending a six-week long jury trial at the Stanley Mosk Courthouse in Los Angeles starting June 24, 2024, and on or about June 23, 2024, Plaintiff checked in as guest at the Biltmore Los Angeles Hotel and remained as a guest for approximately five weeks until this incident. (Complaint ¶20.) Plaintiff alleges that as a long-term guest of the Biltmore Hotel, he had gotten to know many of the hotel's employees and representatives, and he was known to them as of July 29, 2024.

(Complaint ¶20.)

Plaintiff alleges

that on July 29, 2024, Plaintiff returned to the Biltmore Hotel from the trial he was attending, in professional attire. (Complaint ¶21.) Plaintiff alleges that he attempted to enter the Biltmore Hotel at the Olive Street entrance, as he had in the past; however, a security guard, who appeared to be an agent of Miss USA, blocked his entrance and without providing additional information told Plaintiff that he could not enter. (Complaint ¶21.) Plaintiff alleges that the guard asked Plaintiff what he was doing there. (Complaint

¶21.) Plaintiff alleges that he

responded that he was staying at the Biltmore and heading to his room. (Complaint ¶21.) Plaintiff alleges that the guard firmly denied him entrance and before finally informing Plaintiff that the entrance was closed for a private event. (Complaint ¶21.) Plaintiff alleges that the guard told him to go around to the other entrance.

(Complaint ¶21.)

Plaintiff alleges

that after he entered the Biltmore from its Grand Avenue entrance and as he crossed the lobby, he saw several people running toward him, and heard words to the effect of "that's him!" (Complaint

¶22.) Plaintiff alleges that he was confused

and asked what was happening. (Complaint

¶22.) Plaintiff alleges that Defendant

Sevi said in a threatening manner words to the effect of "you're going to see what's going to happen to you!"

(Complaint ¶22.)

Plaintiff alleges

that shortly afterward one of the pageant security guards, whom Plaintiff was

told by pageant officials was Defendant Matthew Lopez, blocked Plaintiff's path

and told him that he was not going anywhere. (Complaint ¶23.) Plaintiff alleges that when he asked the

guard to explain why and what was going on, the guard refused. (Complaint ¶23.) Plaintiff alleges he was simply threatened by

taunts indicating that he was going to be punished for some unknown reason. (Complaint ¶23.) Plaintiff alleges that as he attempted to

pass, the guard grabbed him. (Complaint

¶23.)

Plaintiff alleges

the same security guard, who Plaintiff is informed and believes was Defendant

Matthew Lopez and was employed by Defendant S&S, held Plaintiff's hands and

arms tightly and painfully and pushed Plaintiff toward where Defendant Lopez

wanted him. (Complaint ¶24.) Plaintiff alleges that he continued to ask

what was happening, as he did not understand who these people were or what was

happening to him. (Complaint ¶24.) Plaintiff alleges that Biltmore Hotel staff

observed Plaintiff being grabbed, seized, and knowingly allowed him to be

forcefully detained. (Complaint

¶24.) Plaintiff alleges that he began

calling out to Biltmore Hotel personnel to please help him and that he was a hotel

guest and to call the police. (Complaint

¶24.)

Plaintiff alleges

that he was held against his will by non-Biltmore security personnel with the

cooperation of the Biltmore Hotel, whose employees recognized him as a guest. (Complaint ¶25.) Plaintiff alleges that at one point, while he was being forcibly detained, a Biltmore employee approached him and asked him if he was a guest there, to which he replied yes. (Complaint ¶25.) Plaintiff alleges that the employee obtained Plaintiff's identification and again confirmed that he was a hotel guest, even though this was already known to other Biltmore employees. (Complaint ¶25.) Plaintiff alleges that even after the others present, including the pageant security guards and other agents of Miss Teen USA, heard Biltmore personnel confirm that Plaintiff was a hotel guest, they refused to let go of him. (Complaint ¶25.) Plaintiff alleges that given that he was an invited and paying guest at the Biltmore Hotel, the hotel and its employees and agents owed him a heightened duty of care to prevent foreseeable harm to him by third parties and to intervene once they observed Plaintiff being assaulted, battered and/or unlawfully detained. (Complaint ¶25.) Plaintiff alleges that, instead, they assisted in Plaintiff's detention, blocked Plaintiff's path, surrounded him, and allowed him to be forcibly detained against his will and physically injured. (Complaint ¶25.)

Plaintiff alleges

that Defendant Lopez physically held Plaintiff for an extended period of time with such force that it hurt Plaintiff. (Complaint ¶26.) Plaintiff alleges that while he was being physically held against his will, he was shown an image of a man on a cell phone and asked words to the effect of "is this you?" (Complaint ¶26.) Plaintiff alleges that the person on the cell phone photograph clearly was not Plaintiff. (Complaint ¶26.) Plaintiff alleges that he was stunned. (Complaint ¶26.) Plaintiff alleges that he asked the people around him, including Defendants Sevi, Lopez, and several Biltmore employees, how they could think that this person was him. (Complaint ¶26.) Plaintiff alleges that nonetheless, Defendants continued to cause Plaintiff to be physically restrained for several more minutes. (Complaint ¶26.) Plaintiff alleges that all the while, he was repeatedly pleading with Biltmore employees to help him, but they ignored his cries for help. (Complaint ¶26.)

Plaintiff alleges

that during his detention, Defendants Sevi, Loiczly, Basile, and Lopez, and persons acting on Miss USA's behalf never asked Plaintiff who he was, for his identification or other information, or gave him any explanation as to what was happening to him. (Complaint ¶27.)

Plaintiff alleges

that long after they recognized Plaintiff as a guest and heard his pleas for help, Biltmore Hotel personnel finally informed Defendant Lopez and the other

Defendants affiliated with the Miss Teen USA Pageant that Plaintiff was not the person they sought. (Complaint ¶28.) Plaintiff alleges that Defendant Lopez still would not release Plaintiff. (Complaint ¶28.) Plaintiff alleges that although Defendant Lopez was acting as their agent on behalf of Defendant S&S in providing security for the Miss Teen USA Pageant, Defendants Sevi, Loiczly, and Basile did not authorize, direct or ask Defendant Lopez to release Plaintiff. (Complaint ¶28.)

Plaintiff alleges that although he was still being detained, he managed to call his brother, who is a criminal defense lawyer in Los Angeles, and asked for his immediate help. (Complaint ¶29.) Plaintiff alleges that his brother, who is also of Lebanese descent, headed to the Biltmore as soon as he received the call for help. (Complaint ¶29.)

Plaintiff alleges that shortly before his brother arrived, the pageant Defendants finally let go of Plaintiff, but Plaintiff was still not free to leave. (Complaint ¶30.) Plaintiff alleges that while Plaintiff was attempting to address what had occurred, a person working for the Miss Teen USA Pageant chastised Plaintiff and falsely denied that Miss USA security had wrongfully detained him. (Complaint ¶30.) Plaintiff alleges that instead of owning up to their grievous misconduct and apologizing to Plaintiff, the Pageant Defendants covered up the facts and attempted to deflect blame for their own malfeasance. (Complaint ¶30.)

Plaintiff alleges that after his release, he and his brother were told that the Miss USA pageant believed Plaintiff to be some person who allegedly posed a threat to a girl or girls participating in the pageant, who Plaintiff understands to have been the different man in the photograph he had seen. (Complaint ¶31.) Plaintiff alleges that an employee of the Biltmore Hotel also acknowledged to Plaintiff's brother that Plaintiff's detention had violated protocol. (Complaint ¶31.) Plaintiff alleges that, nonetheless, instead of taking responsibility for their wrongful actions, Defendants misrepresented what happened in an attempt to obfuscate and cover up their illegal conduct and despicable actions towards Plaintiff. (Complaint ¶31.)

Plaintiff alleges

that he was able to go to his room and obtain his belongings. (Complaint ¶32.) Plaintiff alleges that as he approached his room,

he observed two Biltmore security guards standing outside his room, whom he had gotten to know during his lengthy stay, and asked them how they could have let this happened. (Complaint ¶32.) Plaintiff alleges that they replied by indicating that they were not allowed to do anything to help him, even though they knew he was a guest and had done nothing wrong. (Complaint ¶32.)

Plaintiff alleges

on information and belief that on or about July 29, 2024, Defendants and each of them, including DOES 1 through 50, inclusive, interfered, and/or attempted to interfere, by threats, intimidation, coercion, and/or violence with Plaintiff's rights, including, without limitation, the right to be free from bodily harm or restraint, the right to be free from personal insult and injury to personal relations, the right to be free from discrimination based on race, religion, color and/or national origin or his perceived race, religion, color, and/or national origin, the right to be free from excessive force and as provided for by Civil Code Sections 43, 51, 51.5, and 51.7, Penal Code Sections 236, 240 and 242 and Article 1, Sect. 1 of the California Constitution and U.S. Constitution. (Complaint ¶37.) Plaintiff alleges that at all relevant times, Defendants acted with intent to violate Plaintiff's rights or with reckless disregard of his rights. (Complaint ¶37.)

Plaintiff alleges

Defendants, and each of them, engaged in the acts alleged herein and/or condoned, permitted, authorized, directed, approved, and/or ratified the conduct of their officers, managers, staff, employees, agents, and other representatives, and are therefore vicariously liable for the wrongful conduct of their employees and agents. (Complaint ¶38.)

Plaintiff alleges

that the individual Defendants' unlawful acts against Plaintiff were committed in the course and scope of their agency and employment with the entity Defendants, which are vicariously liable for the acts and omissions of their agents and employees. (Complaint ¶39.) Plaintiff alleges the Biltmore Defendants condoned and ratified the unlawful acts of Defendant Lopez and other Doe Defendants, who were acting as de facto and/or ostensible agents of the Biltmore Defendants. (Complaint ¶39.)

Plaintiff alleges

that as a direct and legal result of the acts and omissions of Defendants, including DOES 1 through 50, inclusive, Plaintiff has suffered physical injury and physical sickness, loss of earnings and earnings capacity, loss of enjoyment of life, pain and suffering, disfigurement, humiliation, fear, anxiety, torment, degradation, embarrassment, shock, loss of self-esteem, medical expenses, severe mental and emotional distress, attorneys' fees and other pecuniary and non-pecuniary losses. (Complaint ¶40.) Plaintiff alleges he has sustained serious and lasting injuries, which could result in permanent disability, the nature and extent of which has yet to be determined. (Complaint ¶40.) Plaintiff alleges on information and belief that he will continue to incur medical expenses in the future, the amount of which is not presently ascertained.

(Complaint ¶40.)

Plaintiff alleges

on information and belief that Defendants and their managing agents, officers, and/or directors committed the acts alleged herein maliciously, fraudulently, and oppressively, with the wrongful intention of injuring Plaintiff and acted with an improper and evil motive amounting to malice or oppression, and in conscious disregard of the rights, welfare, and safety of Plaintiff. (Complaint ¶42.) Plaintiff alleges that Defendants and their managers, officers, and/or directors authorized or ratified the wrongful conduct of their employees or had advance knowledge of the unfitness of their employees and employed them with a conscious disregard of the rights or safety of others and/or are personally guilty of oppression, fraud, or malice. (Complaint ¶42.)

Plaintiff fails

to allege the conduct complained of was due to his membership in one of the specified classifications set forth in Civil Code section 51.7 or a group similarly protected by constitution or statute from hate crimes. Plaintiff's Complaint merely alleges that "after his release, he and his brother were told that the Miss USA pageant believed Plaintiff to be some person who allegedly posed a threat to a girl or girls participating in the pageant, who Plaintiff understands to have been the different man in the photograph he had seen." (Complaint ¶31.) Plaintiff's Complaint also states that Plaintiff is a Muslim man of Lebanese descent, but the Complaint makes no allegation that he was detained by the Biltmore Hotel's staff because of his religion or ancestry; the allegation is that he was a "victim of racial profiling." (See Complaint ¶4.)

Plaintiff also

fails to allege facts stating the scope of Pageant Defendant's control over

M&C Hotel Interest's and S&S Labor Force's employees; Plaintiff's Complaint acknowledges this ambiguity: "although Defendant Lopez was acting as their agent on behalf of Defendant S&S in providing security for the Miss Teen USA Pageant, Defendants Sevi, Loiczly, and Basile did not authorize, direct or ask Defendant Lopez to release Plaintiff." (Complaint ¶128.) Plaintiff does not allege any conduct by Pageant Defendants that meets the definition of threats, intimidation, coercion, and/or violence. All factual allegations of such conduct are alleged against Defendant Lopez, Defendant S&S, and M&C Hotel Interest.

Accordingly, Pageant Defendants' motion is granted as to the 1st cause of action with 20 days leave to amend.

Violation of
Civil Code §51.7 (Ralph Act) (2nd COA)

"Under the Ralph Act, a plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or their property, and a motivating reason for doing so was a prohibited discriminatory motive, or that [defendant] aided, incited, or conspired in the denial of a protected right." (Gabrielle A. v. County of Orange (2017) 10 Cal.App.5th 1268, 1291.)

Plaintiff alleges that Defendants wrongfully deprived Plaintiff of his right to be free from any violence, or intimidation by threat of violence, committed against his person because of his race, religion, color, and/or national origin or his perceived race, religion, color, and/or national origin in violation of Cal. Civ. Code §51.7. (Complaint ¶144.)

Plaintiff alleges that he is a Muslim man of Lebanese decent and alleges on information and belief that Defendants assaulted and battered him and threatened and intimidated and physically restrained his freedom of movement because of his race, religion, color, and/or national origin or his perceived race, religion, color, and/or national origin. (Complaint ¶144.) Plaintiff alleges on information and belief that his race, religion, color, and/or national origin, or his perceived race, religion, color, and/or national origin, was a motivating

factor in Defendants' unlawful treatment of him. (Complaint ¶44.)

Plaintiff alleges

that the individual Defendants' unlawful acts against him were committed in the course and scope of their agency and employment with the entity Defendants, which are vicariously liable for the acts and omissions of their agents and employees. (Complaint ¶45.) Plaintiff alleges that the Biltmore Defendants condoned and ratified the unlawful acts of Defendant Lopez and other Doe Defendants, who were acting as de facto and/or ostensible agents of the Biltmore Defendants. (Complaint ¶45.)

Plaintiff alleges

that as a direct and legal result of the acts and omissions of Defendants, including DOES 1 through 50, inclusive, Plaintiff has suffered physical injury and physical sickness, loss of earnings and earnings capacity, loss of enjoyment of life, pain and suffering, disfigurement, humiliation, fear, anxiety, torment, degradation, embarrassment, shock, loss of self-esteem, medical expenses, severe mental and emotional distress, attorneys' fees and other pecuniary and non-pecuniary losses. (Complaint ¶46.) Plaintiff alleges that he has sustained serious and lasting injuries, which could result in permanent disability, the nature and extent of which has yet to be determined. (Complaint ¶46.) Plaintiff alleges on information and belief that he will continue to incur medical expenses in the future, the amount of which is not presently ascertained. (Complaint ¶46.)

Plaintiff fails

to allege facts demonstrating that the violence committed against him was motivated by ethnic/racial/national or religious animus. Plaintiff merely alleges, "While Mr. Halawi was being physically held against his will, he was shown an image of a man on a cell phone and asked words to the effect of 'is this you?' The person on the cell phone photograph clearly was not Mr. Halawi. Mr. Halawi was stunned. Mr. Halawi asked the people around him, including Defendants Sevi, Lopez, and several Biltmore employees, how they could think that this person was him." (Complaint ¶26.) Plaintiff also alleges, "[a]fter Mr. Halawi's release, he and his brother were told that the Miss USA pageant believed Mr. Halawi to be some person who allegedly posed a threat to a girl or girls participating in the pageant, who Plaintiff understands to have been the different man in the photograph he had seen."

None of these allegations provide a factual basis that states the violence committed against Plaintiff was motivated by ethnic/racial/national or religious animus; Plaintiff's Complaint essentially alleges that fact that

Plaintiff was detained because staff believed he was a person who posed a threat to girls in the pageant.

Plaintiff does not allege that the reason presented to him was pretext for discrimination.

Accordingly,

Pageant Defendants' motion is granted as to the 2nd cause of action with 20 days leave to amend.

Violation of Civil Code §51.5 (Discrimination in Business Dealings) [against Defendant VVV Global Ent.] (3rd COA)

"[T]he analysis under Civil Code section 51.5 is the same as the analysis we have already set forth for purposes of the [Unruh Civil Rights] Act." (Semler v. General Electric Capital Corp. (2011) 196 Cal.App.4th 1380, 1404.)

"No business establishment of any kind whatsoever shall discriminate against, boycott or blacklist, or refuse to buy from, contract with, sell to, or trade with any person in this state on account of any characteristic listed or defined in subdivision (b) or (e) of Section 51, or of the person's partners, members, stockholders, directors, officers, managers, superintendents, agents, employees, business associates, suppliers, or customers, because the person is perceived to have one or more of those characteristics, or because the person is associated with a person who has, or is perceived to have, any of those characteristics." (Civ. Code §51.5(a).)

"The plain language of section 51 does not prohibit only those acts of discrimination which are routinely committed or are a matter of policy. Obviously, a plaintiff will have an easier burden of persuasion if he can provide evidence that the defendant routinely discriminates against the class to which he belongs. Such an allegation is not necessary, however, to plead a violation of section 51. Whether real parties did discriminate in this case is a factual question and it cannot be determined as a question of law from the facts pleaded." (Jackson v. Superior Court (1994) 30 Cal.App.4th 936, 942.)

"To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a

business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff's protected status." (Liapes v. Facebook, Inc. (2023) 95 Cal.App.5th 910, 922.)

Plaintiff alleges

Defendant VVV Global Ent. d/b/a Miss USA, is a business establishment within the meaning of Civ. Code §51.5.

(Complaint ¶49.) Plaintiff

alleges on information and belief that Defendant VVV Global Ent. d/b/a Miss USA discriminated against Plaintiff because of his race, color, ancestry, religion, and/or national origin or their perception of these characteristics as alleged herein; and denied him full and equal accommodations, advantages, facilities, privileges, or service because of his race, religion, color, and/or national origin or his perceived race, religion, color, and/or national origin. (Complaint ¶51.)

Plaintiff alleges

that as a direct and legal result of the acts and omissions of Defendant, Plaintiff has suffered physical injury and physical sickness, loss of earnings and earnings capacity, loss of enjoyment of life, pain and suffering, disfigurement, humiliation, fear, anxiety, torment, degradation, embarrassment, shock, loss of self-esteem, medical expenses, severe mental and emotional distress, attorneys' fees and other pecuniary and non-pecuniary losses. (Complaint ¶52.) Plaintiff alleges that he has sustained serious

and lasting injuries, which could result in permanent disability, the nature and extent of which has yet to be determined. (Complaint ¶52.) Plaintiff alleges on information and belief that he will continue to incur medical expenses in the future, the amount of which is not presently ascertained.

(Complaint ¶52.)

Plaintiff fails

to allege facts that Defendant VVV Global Ent. intentionally discriminated against and/or denied plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff's protected status. Plaintiff merely asserts legal conclusions that he was discriminated against "because of his race, color, ancestry, religion, and/or national origin or their perception of these characteristics as alleged herein."

Accordingly,

Pageant Defendants' motion is granted as to the 3rd cause of action with

20 days leave to amend.

Violation of Civil Code §51 (Unruh Civil Rights Act) [against all Defendants] (4th COA)

“To state a claim

under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff's protected status.” (Liapes v. Facebook, Inc. (2023) 95 Cal.App.5th 910, 922.)

Plaintiff alleges

on information and belief that Defendants discriminated against Plaintiff because of his race, color, ancestry, religion, and/or national origin or their perception of these characteristics as alleged herein; interfered with Plaintiff's rights under state law, including the state Constitution; and denied him full and equal accommodations, advantages, facilities, privileges, or service because of his race, religion, color, and/or national origin or his perceived race, religion, color, and/or national origin. (Complaint ¶157.)

Plaintiff alleges

the individual Defendants' unlawful acts against him were committed in the course and scope of their agency and employment with the entity Defendants, which are vicariously liable for the acts and omissions of their agents and employees. (Complaint ¶158.)

Plaintiff alleges

that as a direct and legal result of the acts and omissions of Defendants, Plaintiff has suffered physical injury and physical sickness, loss of earnings and earnings capacity, loss of enjoyment of life, pain and suffering, disfigurement, humiliation, fear, anxiety, torment, degradation, embarrassment, shock, loss of self-esteem, medical expenses, severe mental and emotional distress, attorneys' fees and other pecuniary and non-pecuniary losses. (Complaint ¶159.) Plaintiff alleges that he has sustained serious and lasting injuries, which could result in permanent disability, the nature and extent of which has yet to be determined. (Complaint ¶159.) Plaintiff alleges on information and belief that he will continue to incur medical expenses in the future, the amount of which is not presently ascertained.

(Complaint ¶159.)

Plaintiff fails

to allege facts that Pageant Defendants intentionally discriminated against and/or denied plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff's protected status. Plaintiff merely asserts legal conclusions that he was discriminated against "because of his race, color, ancestry, religion, and/or national origin or their perception of these characteristics as alleged herein."

Accordingly,

Pageant Defendants' motion is granted as to the 4th cause of action with 20 days leave to amend.

Assault [against

all Defendants] (5th COA)

"The essential

elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (So v. Shin (2013) 212 Cal.App.4th 652, 668-669.)

Plaintiff alleges

that after he entered the Biltmore from its Grand Avenue entrance and as he crossed the lobby, he saw several people running toward him, and heard words to the effect of "that's him!" (Complaint

¶22.) Plaintiff alleges he was confused

and asked what was happening. (Complaint

¶22.) Plaintiff alleges Defendant Sevi

said in a threatening manner words to the effect of "you're going to see what's going to happen to you!" (Complaint

¶22.)

Plaintiff alleges

Defendant Matthew Lopez was at all relevant times acting as an agent of Miss

USA as a security guard at the Biltmore Hotel in Los Angeles. Plaintiff alleges on information and belief that Defendant Lopez was acting at the behest of and/or in the course and scope of his agency and/or employment with Defendants S&S, Miss USA, Loiczly, Sevi, RBE and Basile and with the authorization and permission of the Biltmore Hotel.

(Complaint ¶12.)

Plaintiff alleges

that while in acting within the course and scope of their employment by the corporate or business entity defendants, the individual Defendants committed acts which resulted in imminent apprehension of harmful or offensive contact with Plaintiff's person, to which Plaintiff did not consent. (Complaint ¶63.) Plaintiff alleges said imminent apprehension of harmful or offensive contact caused injury, damage, loss, and/or harm to Plaintiff as alleged herein. (Complaint ¶63.) Plaintiff alleges the individual Defendants' acts of assault against him were committed in the course and scope of their agency and employment with the entity Defendants, which are vicariously liable for the acts and omissions of their agents and employees. (Complaint ¶63.)

Plaintiff alleges

that as a direct and legal result of the acts and omissions of Defendants, including DOES 1 through 50, inclusive, Plaintiff has suffered physical injury and physical sickness, loss of earnings and earnings capacity, loss of enjoyment of life, pain and suffering, disfigurement, humiliation, fear, anxiety, torment, degradation, embarrassment, shock, loss of self-esteem, medical expenses, severe mental and emotional distress, attorneys' fees and other pecuniary and non-pecuniary losses. (Complaint ¶64.) Plaintiff alleges he has sustained serious and lasting injuries, which could result in permanent disability, the nature and extent of which has yet to be determined. (Complaint ¶64.) Plaintiff alleges on information and belief that he will continue to incur medical expenses in the future, the amount of which is not presently ascertained. (Complaint ¶64.)

Plaintiff alleges

on information and belief that Defendants and their managing agents, officers, and/or directors committed the acts alleged herein maliciously, fraudulently, and oppressively, with the wrongful intention of injuring Plaintiff and acted with an improper and evil motive amounting to malice or oppression, and in conscious disregard of the rights, welfare, and safety of Plaintiff. (Complaint ¶65.) Plaintiff alleges Defendants and their managers, officers, and/or directors authorized or ratified the wrongful conduct of their employees or had advance knowledge of the unfitness of their

employees and employed them with a conscious disregard of the rights or safety of others and/or are personally guilty of oppression, fraud, or malice. (Complaint ¶65.) Plaintiff alleges he is entitled to recover punitive damages from Defendants in an amount to be proven at trial. (Complaint ¶65.)

Plaintiff fails

to allege facts, rather than legal conclusions, regarding Defendant Lopez's agency relationship with Pageant Defendants.

Plaintiff fails to allege that Defendant Sevi's statements involve a display of force, or threat of imminent physical harm. "That's him!" is an identification, and "you're going to see what's going to happen to you!" is a vague threat.

Accordingly,

Pageant Defendants' motion as to the 5th cause of action is granted with 20 days leave to amend.

Battery [against
all Defendants] (6th COA)

"The essential

elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (So v. Shin (2013) 212 Cal.App.4th 652, 669.)

Plaintiff alleges

Defendant Matthew Lopez was at all relevant times acting as an agent of Miss USA as a security guard at the Biltmore Hotel in Los Angeles. Plaintiff alleges on information and belief that Defendant Lopez was acting at the behest of and/or in the course and scope of his agency and/or employment with Defendants S&S, Miss USA, Loiczly, Sevi, RBE and Basile and with the authorization and permission of the Biltmore Hotel.
(Complaint ¶12.)

Plaintiff alleges

Defendant Lopez and other Doe Defendant committed acts, including using excessive and unjustified force to restrain Plaintiff, which resulted in harmful or offensive contact with Plaintiff's person, to which he did not

consent. (Complaint ¶67.) Plaintiff alleges said harmful or offensive contact caused injury, damage, loss, and/or harm to Plaintiff as alleged herein. (Complaint ¶67.) Plaintiff alleges the individual Defendants' unlawful acts of battery against Plaintiff were committed in the course and scope of their agency and employment with the entity Defendants, which are vicariously liable for the acts and omissions of their agents and employees. (Complaint ¶67.)

Plaintiff alleges

as a direct and legal result of the acts and omissions of Defendants, Plaintiff has suffered physical injury and physical sickness, loss of and earnings and earnings capacity, loss of enjoyment of life, pain and suffering, disfigurement, humiliation, fear, anxiety, torment, degradation, embarrassment, shock, loss of self-esteem, medical expenses, severe mental and emotional distress, attorneys' fees and other pecuniary and non-pecuniary losses. (Complaint ¶68.) Plaintiff alleges has sustained serious and lasting injuries, which could result in permanent disability, the nature and extent of which has yet to be determined. (Complaint ¶68.) Plaintiff alleges on information and belief that he will continue to incur medical expenses in the future, the amount of which is not presently ascertained.

(Complaint ¶68.)

Plaintiff alleges

on information and belief that Defendants and their managing agents, officers, and/or directors committed the acts alleged herein maliciously, fraudulently, and oppressively, with the wrongful intention of injuring Plaintiff and acted with an improper and evil motive amounting to malice or oppression, and in conscious disregard of the rights, welfare, and safety of Plaintiff. (Complaint ¶69.) Plaintiff alleges that Defendants and their managers, officers, and/or directors authorized or ratified the wrongful conduct of their employees or had advance knowledge of the unfitness of their employees and employed them with a conscious disregard of the rights or safety of others and/or are personally guilty of oppression, fraud, or malice. (Complaint ¶69.) Plaintiff alleges that he is entitled to recover punitive damages from Defendants in an amount to be proven at trial. (Complaint ¶69.)

Plaintiff fails

to allege facts rather than legal conclusions regarding Defendant Lopez's agency relationship with Pageant Defendants.

Accordingly,

Pageant Defendants' motion as to the 6th cause of action is granted with 20 days leave to amend.

False Arrest

[against all Defendants] (7th COA)

“The crime of

false imprisonment is defined by Penal Code section 236 as the ‘unlawful violation of the personal liberty of another.’ The tort is identically defined.

As we recently formulated it, the tort consists of the ‘nonconsensual, intentional confinement of a person, without lawful privilege, for an appreciable length of time, however short.’ That length of time can be as brief as 15 minutes. Restraint may be effectuated by means of physical force, threat of force or of arrest, confinement by physical barriers, or by means of any other form of unreasonable duress.” (Fermino v. Fedco, Inc. (1994) 7 Cal.4th 701, 716, internal citations omitted.)

“[T]he critical

question as to causation in intentional torts is whether the actor’s conduct is a substantial factor in bringing about the type of harm which he intended from his original act.” (Null v. City of

Los Angeles (1988) 206 Cal.App.3d 1528, 1536, n.6, internal citations omitted.)

Plaintiff alleges

on information and belief that on July 29, 2024, Defendants intentionally and unlawfully – without lawful privilege, and without any reasonable or probable cause, and without any justification – caused Plaintiff to be forcibly seized Plaintiff against his will and caused him to be arrested. (Complaint ¶71.) Plaintiff alleges the individual Defendants’ acts of false arrest against him were committed in the course and scope of their agency and employment with the entity Defendants, which are vicariously liable for the acts and omissions of their agents and employees. (Complaint ¶71.)

Plaintiff alleges

Defendant Matthew Lopez was at all relevant times acting as an agent of Miss USA as a security guard at the Biltmore Hotel in Los Angeles. Plaintiff alleges on information and belief that Defendant Lopez was acting at the behest of and/or in the course and scope of his agency and/or employment with Defendants S&S, Miss USA, Loiczly, Sevi, RBE and Basile and with the authorization and permission of the Biltmore Hotel. (Complaint ¶12.)

Plaintiff alleges

that after he entered the Biltmore from its Grand Avenue entrance and as he crossed the lobby, he saw several people running toward him, and heard words to the effect of "that's him!" (Complaint

¶22.) Plaintiff alleges he was confused

and asked what was happening. (Complaint

¶22.) Plaintiff alleges Defendant Sevi

said in a threatening manner words to the effect of "you're going to see what's going to happen to you!" (Complaint

¶22.)

Plaintiff alleges

that shortly afterward one of the pageant security guards, whom Plaintiff was

told by pageant officials was Defendant Matthew Lopez, blocked Plaintiff's path

and told Plaintiff that he was not going anywhere. (Complaint ¶23.) Plaintiff alleges that when he asked the

guard to explain why and what was going on, the guard refused. (Complaint ¶23.) Plaintiff alleges that he was simply threatened by taunts indicating that he was going to be punished for some unknown

reason. (Complaint ¶23.) Plaintiff alleges that as he attempted to

pass, the guard grabbed him. (Complaint

¶23.)

Plaintiff alleges

that the same security guard, who Plaintiff is informed and believes was

Defendant Matthew Lopez and was employed by Defendant S&S, held Plaintiff's

hands and arms tightly and painfully and pushed Plaintiff toward where Defendant

Lopez wanted him. (Complaint ¶24.) Plaintiff alleges he continued to ask what

was happening, as he did not understand who these people were or what was

happening to him. (Complaint ¶24.) Plaintiff alleges Biltmore Hotel staff

observed Plaintiff being grabbed, seized, and knowingly allowed him to be

forcefully detained. (Complaint

¶24.) Plaintiff alleges he began calling

out to Biltmore Hotel personnel to please help him and that he was a hotel

guest and to call the police. (Complaint

¶24.)

Plaintiff alleges

was held against his will by non-Biltmore security personnel with the

cooperation of the Biltmore Hotel, whose employees recognized him as a guest. (Complaint ¶25.) Plaintiff alleges that at one point, while he

was being forcibly detained, a Biltmore employee approached him and asked him if

he was a guest there, to which he replied yes. (Complaint ¶25.) Plaintiff alleges the employee obtained Plaintiff's identification and again confirmed that he was a hotel guest, even though this was already known to other Biltmore employees. (Complaint ¶25.) Plaintiff alleges even after the others present, including the pageant security guards and other agents of Miss Teen USA, heard Biltmore personnel confirm that Plaintiff was a hotel guest, they refused to let go of him. (Complaint ¶25.) Plaintiff alleges the hotel and its employees and agents assisted in Plaintiff's detention, blocked Plaintiff's path, surrounded him, and allowed him to be forcibly detained against his will and physically injured. (Complaint ¶25.)

Plaintiff alleges

Defendant Lopez physically held him for an extended period of time with such force that it hurt Plaintiff. (Complaint ¶26.) Plaintiff alleges that while he was being physically held against his will, he was shown an image of a man on a cell phone and asked words to the effect of "is this you?" (Complaint ¶26.) Plaintiff alleges that the person on the cell phone photograph clearly was not Plaintiff.

(Complaint ¶26.) Plaintiff

alleges that he was stunned and asked the people around him, including Defendants Sevi, Lopez, and several Biltmore employees, how they could think that this person was him. (Complaint

¶26.) Plaintiff alleges that Defendants

continued to cause Plaintiff to be physically restrained for several more minutes. (Complaint ¶26.) Plaintiff alleges that all the while, he was repeatedly pleading with Biltmore employees to help him, but they ignored his cries for help. (Complaint ¶26.)

Plaintiff alleges

that during his detention, Defendants Sevi, Loiczly, Basile, and Lopez, and persons acting on Miss USA's behalf never asked Plaintiff who he was, for his identification or other information, or gave him any explanation as to what was happening to him. (Complaint ¶27.)

Plaintiff alleges

that long after they recognized Plaintiff as a guest and heard his pleas for help, Biltmore Hotel personnel finally informed Defendant Lopez and the other Defendants affiliated with the Miss Teen USA Pageant that Plaintiff was not the person they sought. (Complaint

¶28.) Plaintiff alleges that Defendant

Lopez still would not release Plaintiff, although Defendant Lopez was acting as

their agent on behalf of S&S in providing security for the Miss Teen USA Pageant, Defendants Sevi, Loiczly, and Basile did not authorize, direct or ask Lopez to release Plaintiff. (Complaint ¶128.)

Plaintiff alleges

that although he was still being detained, he managed to call his brother, who is a criminal defense lawyer in Los Angeles, and asked for his immediate help. (Complaint ¶129.) Plaintiff alleges his brother, who is also of Lebanese descent, headed to the Biltmore as soon as he received the call for help. (Complaint ¶129.)

Plaintiff alleges

that shortly before Plaintiff's brother arrived, the pageant Defendants finally let go of Plaintiff, but he was still not free to leave. (Complaint ¶130.) Plaintiff alleges that while he was attempting to address what had occurred, a person working for the Miss Teen USA Pageant chastised Plaintiff and falsely denied that Miss USA security had wrongfully detained him. (Complaint ¶130.) Plaintiff alleges that instead of owning up to their grievous misconduct and apologizing to Plaintiff, the Pageant Defendants covered up the facts and attempted to deflect blame for their own malfeasance. (Complaint ¶130.)

Plaintiff fails

to allege facts rather than legal conclusions regarding Defendant Lopez's agency relationship with Pageant Defendants.

Accordingly,

Pageant Defendants' motion as to the 7th cause of action is granted with 20 days leave to amend.

Negligence- Negligent Hiring, Retention, Supervision, and/or Training [against all Defendants] (8th COA)

"The elements of

a cause of action for negligence are well established. They are '(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.'" (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

"To establish

negligent supervision, a plaintiff must show that a person in a supervisorial

position over the actor had prior knowledge of the actor's propensity to do the bad act." (Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902.)

Plaintiff alleges

Defendants, and each of them, owed a duty of care towards Plaintiff in which they were required to act reasonably towards Plaintiff. (Complaint ¶76.) Plaintiff alleges that Defendants, and each of them, breached their duty of care towards Plaintiff, resulting in Plaintiff's damage. (Complaint ¶76.)

Plaintiff alleges

that the individual Defendants' negligent acts towards Plaintiff were committed in the course and scope of their agency and employment with the entity Defendants, which are vicariously liable for the acts and omissions of their agents and employees. (Complaint ¶77.)

Plaintiff alleges

on information and belief that Defendants VVV Global Ent. d/b/a Miss USA, M & C Hotel Interests, Inc. d/b/a/ Millennium Biltmore Hotel Los Angeles, Renato Basile Entertainment, S&S Labor Force Inc., Elyse Sevi, Laylah Loiczly, Jimmy Wu, Stuart Howe, Brenda Canales, Ron Basile and other named unknown supervisors negligently hired, retained, supervised, trained, assigned, and failed to discipline their employees and agents, including Defendant Matthew Lopez and DOES 1-40, inclusive, involved in the incident. (Complaint ¶78.) Plaintiff alleges that Defendants' negligence was a direct and legal cause of injury to Plaintiff. (Complaint ¶78.)

Plaintiff alleges

on information and belief that Defendants, and DOES 1-50, inclusive, and other supervisors knew, or in the exercise of reasonable care should have known that Plaintiff had done nothing wrong and that there was no basis to forcibly detain him yet nonetheless caused and allowed Plaintiff to be wrongfully detained and injured. (Complaint ¶79.)

Plaintiff fails

to allege facts rather than legal conclusions regarding Defendant Lopez's agency relationship with Pageant Defendants.

Plaintiff fails to allege facts that Pageant Defendants were in a supervisory position over Defendant Matthew Lopez and had prior knowledge of the Defendant

Matthew Lopez's propensity to do the bad act alleged.

Accordingly,

Pageant Defendants' motion as to the 8th cause of action is granted with 20 days leave to amend.

Intentional Infliction of Emotional Distress

[against all Defendants] (9th COA)

"A cause of

action for intentional infliction of emotional distress exists when there is

'(1) extreme and outrageous conduct by the defendant with the intention of

causing, or reckless disregard of the probability of causing, emotional

distress; (2) the plaintiff's suffering severe or extreme emotional distress;

and (3) actual and proximate causation of the emotional distress by the

defendant's outrageous conduct.' A defendant's conduct is 'outrageous' when it

is so 'extreme as to exceed all bounds of that usually tolerated in a civilized

community.' And the defendant's conduct must be 'intended to inflict injury or

engaged in with the realization that injury will result.'" (Hughes v. Pair (2009) 46 Cal.4th 1035,

1050-1051.)

Plaintiff alleges

that Defendants engaged in outrageous conduct towards Plaintiff with the

intention to cause, or with reckless disregard for the probability of causing,

Plaintiff to suffer severe emotional distress, and with wanton and reckless

disregard for the injurious result to Plaintiff. (Complaint ¶82.) Plaintiff alleges the individual Defendants' unlawful

acts against Plaintiff were committed in the course and scope of their agency

and employment with the entity Defendants, which are vicariously liable for the

acts and omissions of their agents and employees. (Complaint ¶82.)

Plaintiff alleges

that as a direct and proximate cause of aforementioned despicable acts of

Defendants, Plaintiff has suffered severe emotional distress. (Complaint ¶83.) Plaintiff alleges that Defendants' acts were

intentional and done with malicious and oppressive intent. (Complaint ¶83.)

Plaintiff fails

to allege facts rather than legal conclusions regarding Defendant Lopez's

agency relationship with Pageant Defendants.

Plaintiff's allegation that Defendant Sevi said, "you're going to see

what's going to happen to you!" (Complaint ¶22) does not exceed the bounds of

civilized society and does not rise above "mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities."

Accordingly,

Pageant Defendants' motion as to the 9th cause of action is granted with 20 days leave to amend.

Conclusion

Pageant

Defendants' motion for judgment on the pleadings to Plaintiff's Complaint is granted with 20 days leave to amend.

Moving Party to
give notice.

Dated: September _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court